MAHATMA EDUCATION SOCIETY'S
Pillai College of Engineering, New Panvel
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Academic Year 2026–27
HVSE · Module 3 · Ethics and Society
Theme 2 — Privacy vs Public Safety

A CASE STUDY

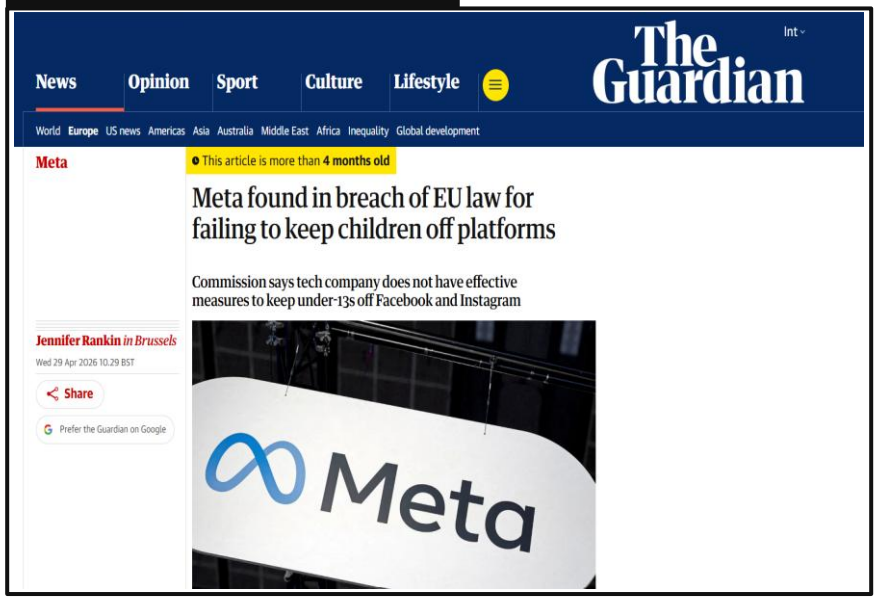
Protecting Children Online:

How Much Privacy Should We Sacrifice for Safety?

Meta's age assurance, child safety and data collection — and the human-values conflict it exposes.

NAME OF STUDENT	CLASS & Roll-No.	DIVISION
Vedant N. Garud	**TY-IT (502)**	**B**

EDITORIAL IMAGE



SOURCE: THE GUARDIAN: 29 APRIL 2026

13+ → Age verification → Child safety → Privacy

Central question: Can children be protected online without turning age verification and safety systems into surveillance?

THE ETHICAL QUESTION

Platforms set 13+. Enforcing it means knowing who is a child.

Two legitimate human values are in conflict: individual privacy, and collective safety.

01

13+

Stated minimum age on Facebook and Instagram

02

Who is actually 13?

Self-declared birth dates can be false

03

How does the platform know?

Age assurance, reporting, AI signals

04

What data is used to find out?

The privacy question begins here

SAFETY

If age is known

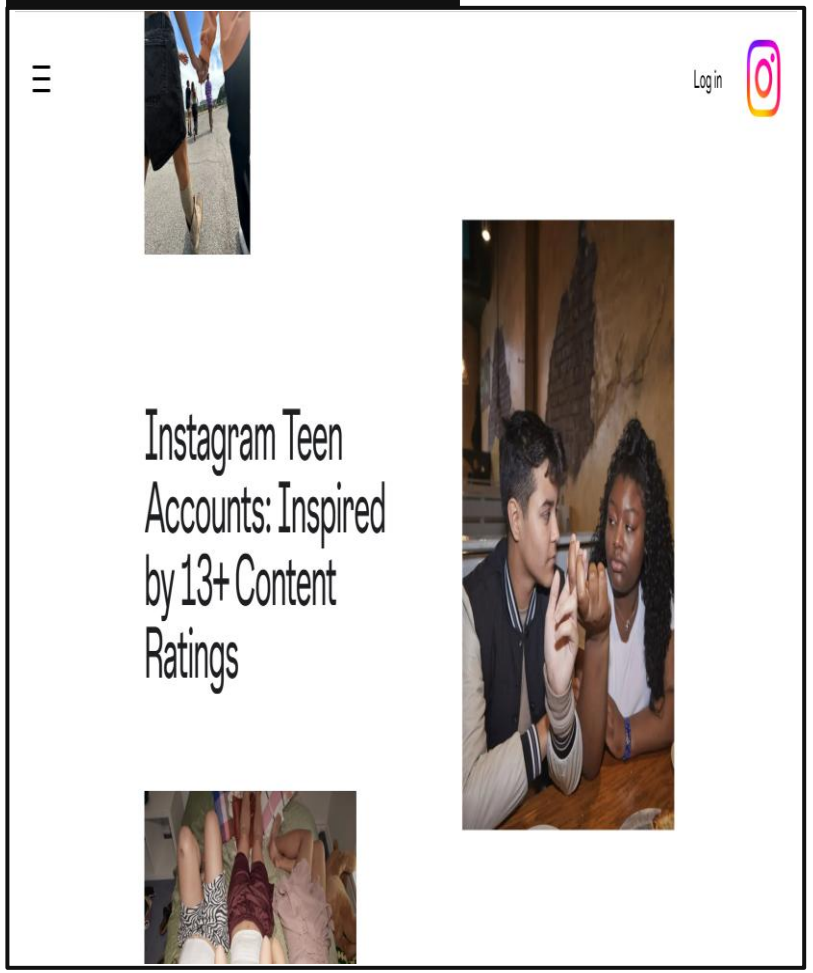
Age verification → Age-appropriate protections → Reduced exposure to harmful environments

PRIVACY

If age must be inferred

Age verification → Additional personal and contextual data → Greater intrusion into every user's privacy

REAL PLATFORM POLICY



SOURCE: INSTAGRAM — TEEN ACCOUNTS

THE REAL-WORLD CASE

The Real Case: Meta and the 13+ Age Barrier

PRELIMINARY FINDING — NOT A FINAL ADJUDICATED DECISION

OFFICIAL EVIDENCE

European Commission - Press release

Commission preliminarily finds Meta in breach of Digital Services Act for failing to prevent minors under 13 from using Instagram and Facebook

Brussels, 29 April 2026

The European Commission has preliminarily found Meta's Instagram and Facebook in breach of the Digital Services Act (DSA) for failing to diligently identify, assess and mitigate the risks of minors under 13 years old accessing their services.

up to seven clicks just to access the reporting form, which is not automatically pre-filled with the user's information. Even when a minor under 13 is reported for being under the age threshold, there often is no proper follow-up, and the reported minor can simply continue to use the service without any type of check.

This builds on an incomplete and arbitrary risk assessment, which inadequately identifies the risk of minors under 13 accessing Instagram and Facebook and being exposed to age-inappropriate experiences. Meta's assessment contradicts large bodies of evidence from all over the European Union

SOURCE: EUROPEAN COMMISSION — 29 APRIL 2026

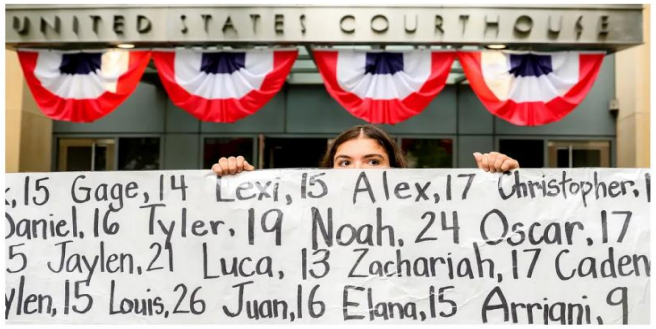
INDEPENDENT REPORTING

THE HILL

NEWSLETTERS

Meta settlement backs competitors into a corner on kids safety

BY MIRANDA NAZZARO - 08/29/26 6:00 AM ET



Noah Berger, Associated Press

Olivia Konar holds a banner with names of young people who advocates say died as a result of social media outside the Ronald V. Dellums Federal Building and U.S. Courthouse on Aug. 18, 2026, in

FOR HILL INSIDERS

25 years after 9/11: How the attacks transformed American politics

WHOLE HOG POLITICS - LIVE BRIEFING 09/11/26

Whole Hog Politics: A pseudo-policy at a pseudo-convention

WHOLE HOG POLITICS 09/11/26

SOURCE: THE HILL — 08/29/26 6:00 AM ET

13+

Meta's stated minimum age on Facebook and Instagram

10–12%

of EU under-13s accessing Instagram and/or Facebook, per Commission evidence. Meta disputes the figure.

7 clicks

to reach the underage-reporting form, which the Commission called difficult to use and often without follow-up

Ethical question — If a platform cannot reliably determine age, how can it reliably provide age-appropriate protection?

THE TECHNOLOGY

More Protection May Require More Data

One week after the Commission's preliminary findings, Meta announced expanded AI-powered age assurance. Accuracy improves as more signals are analysed.

Posts / comments / bio / context + visual cues

AI age-assurance system

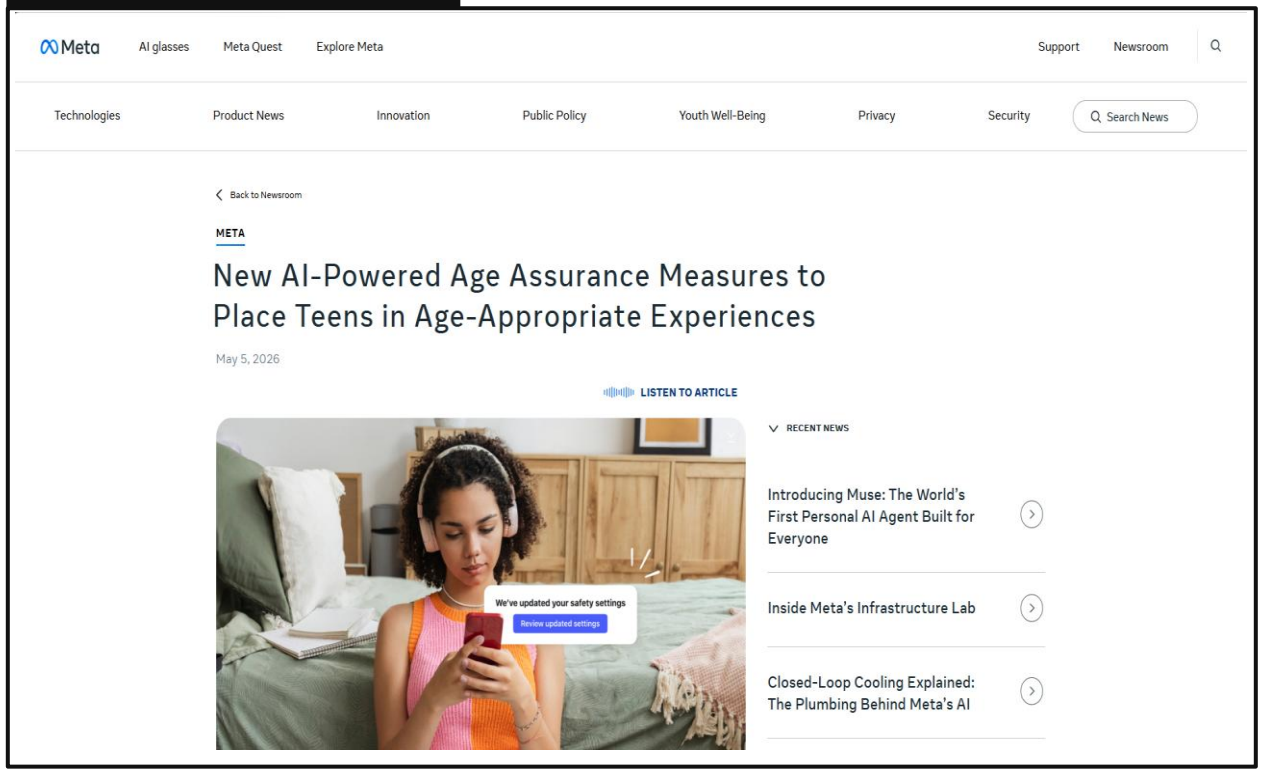
Estimated age — under-13 / teen / adult

Age-appropriate experience, or deactivation pending verification

META SAYS

The system uses contextual signals — including posts, comments, bios and visual cues — to estimate whether an account belongs to a teen. Meta states this is not facial recognition and does not identify a specific person.

OFFICIAL ANNOUNCEMENT



SOURCE: META — 5 MAY 2026

Safer for the user?

VS

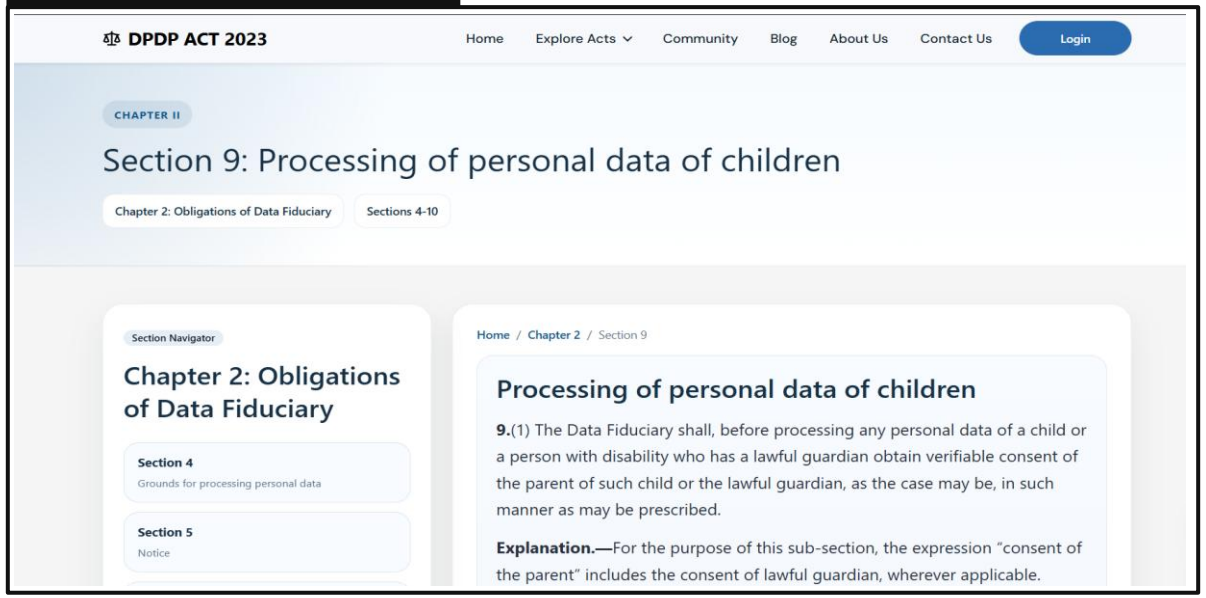
More intrusive for the user?

WHY INDIA MATTERS?

India Faces the Same Ethical Dilemma

Not the same legal regime as the EU — but the same human-values question: how can minors be protected without creating disproportionate surveillance?

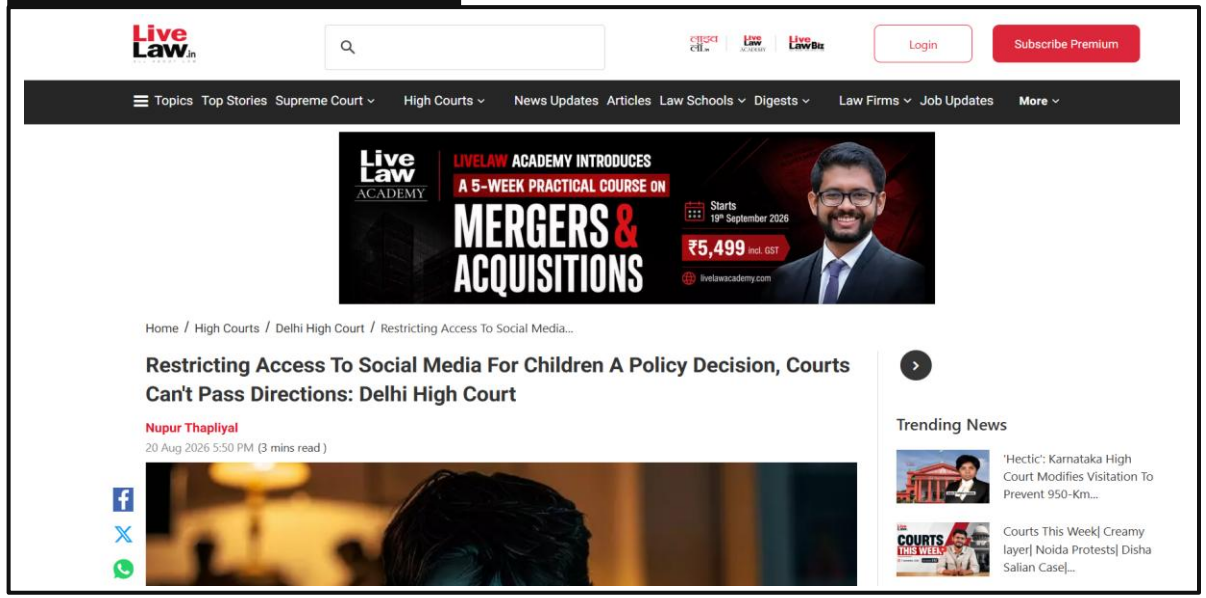
INDIAN LAW



SOURCE: DPDPA 2023, SECTION 9 — STATUTORY TEXT

Before processing a child's data (under 18), a data fiduciary must obtain verifiable parental consent. Tracking, behavioural monitoring and targeted advertising directed at children are prohibited. Penalty for Section 9 breaches: up to ₹200 crore.

INDIAN COURT REPORTING



SOURCE: LIVELAW / DELHI HIGH COURT — 20 AUGUST 2026

Kirti Dua & Dr Sharad Gupta sought restrictions on under-13 access. The Court held this is "in the realm of a policy," not a matter for judicial direction, and asked the Centre to consult stakeholders.

2023

DPDP Act enacted. Child = under 18.

Nov 2025

Rules notified. Children's-data duties phased.

Aug 2026

Delhi HC: a policy choice, not a court ban.

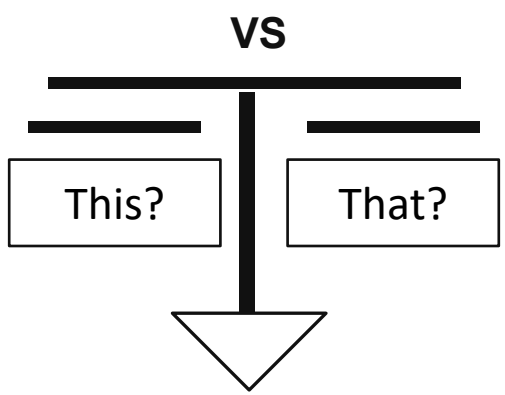
HUMAN VALUES ANALYSIS

Privacy vs Safety: What Should an Ethical System Do?

PRIVACY

Dignity and autonomy

- Dignity
- Autonomy
- Data minimisation
- Freedom from excessive monitoring



SAFETY

Protection from harm

- Protection
- Child welfare
- Prevention of exploitation
- Age-appropriate experience

ETHICAL SOLUTION — PROPORTIONATE, PRIVACY-PRESERVING SAFETY

Necessary

Only where protection requires it

Minimal

Collect as little data as possible

Accurate

Reduce false classifications

Transparent

Explain how age assurance works

Accountable

Independent oversight and audit

Framework informed by GDPR Article 25 (data minimisation) · DPDPA 2023, Section 9 · DSA Article 28 · Meta announcement, May 2026

CONCLUSION

Children deserve protection online — but protection should not make privacy disposable.

Age assurance may be necessary for child safety. The method must remain:



> *Can we design age assurance that protects children without turning every user into a surveillance subject?*

REFERENCES

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3. The Guardian. “Meta found in breach of EU law for failing to keep children off platforms.” 29 April 2026.

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5. Digital Personal Data Protection Act, 2023 (India), Section 9 and the Schedule. MeitY; Rules notified 13 November 2025.

6. EDRi et al. “Online age verification and children’s rights.” Position paper, 4 October 2023.

7. Regulation (EU) 2022/2065 (Digital Services Act), Article 28; GDPR Article 25.

8. LiveLaw / Bar and Bench. Reporting of the Delhi HC PIL disposal, 20 August 2026.